

THE CONSTITUTION (EIGHTY-NINTH AMENDMENT) ACT, 2003

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[Act 89 of 2003](#)

[Published in Gazette of India on 19 December 2002](#)

[Commenced on 28 September 2003](#)

[\[This is the version of this document from 19 December 2002.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[An Act further to amend the Constitution of India.](#)

[BE it enacted by Parliament in the Fifty-fourth Year of the Republic of India as follows:-](#)

1.

[Short title and commencement.-](#)

(1)

[This Act may be called the Constitution \(Eighty-ninth Amendment\) Act, 2003.](#)

(2)

[It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.](#)

2.

[Amendment of article 338. -](#)

[In article 338 of the Constitution,-](#)

(a)

for the marginal heading, the following marginal heading shall be substituted, namely:-

"National Commission for Scheduled Castes.";

(b)

for clauses (1) and (2), the following clauses shall be substituted, namely:-

"(1) There shall be a Commission for the Scheduled Castes to be known as the National Commission for the Scheduled Castes.

(2)

Subject to the provisions of any law made in this behalf by Parliament, the Commission shall consist of a Chairperson, Vice-Chairperson and three other Members and the conditions of service and tenure of office of the Chairperson, Vice-Chairperson and other Members so appointed shall be such as the President may by rule determine.";

(c)

in clauses (5), (9) and (10), the words "and Scheduled Tribes", wherever they occur, shall be omitted.

3.

Insertion of new article 338A. -

After article 338 of the Constitution, the following article shall be inserted, namely:-

"338A. National Commission for Scheduled Tribes.-

(1)

There shall be a Commission for the Scheduled Tribes to be known as the National Commission for the Scheduled Tribes.

(2)

Subject to the provisions of any law made in this behalf by Parliament, the Commission shall consist of a Chairperson, Vice-Chairperson and three other Members and the conditions of service and tenure of office of the Chairperson, Vice-Chairperson and other Members so appointed shall be such as the President may by rule determine.

(3)

The Chairperson, Vice-Chairperson and other Members of the Commission shall be appointed by the President by warrant under his hand and seal.

(4)

The Commission shall have the power to regulate its own procedure.

(5)

It shall be the duty of the Commission-

(a)

to investigate and monitor all matters relating to the safeguards provided for the Scheduled Tribes under this Constitution or under any other law for the time being in force or under any order of the Government and to evaluate the working of such safeguards;

(b)

to inquire into specific complaints with respect to the deprivation of rights and safeguards of the Scheduled Tribes;

(c)

to participate and advise on the planning process of socio-economic development of the Scheduled Tribes and to evaluate the progress of their development under the Union and any State;

(d)

to present to the President, annually and at such other times as the Commission may deem fit, reports upon the working of those safeguards;

(e)

to make in such reports recommendations as to the measures that should be taken by the Union or any State for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the Scheduled Tribes; and

(f)

to discharge such other functions in relation to the protection, welfare and development and advancement of the Scheduled Tribes as the President may, subject to the provisions of any law made by Parliament, by rule specify.

(6)

The President shall cause all such reports to be laid before each House of Parliament along with a memorandum

explaining the action taken or proposed to be taken on the recommendations relating to the Union and the reasons for the non-acceptance, if any, of any of such recommendations.

(7)

Where any such report, or any part thereof, relates to any matter with which any State Government is concerned, a copy of such report shall be forwarded to the Governor of the State who shall cause it to be laid before the Legislature of the State along with a memorandum explaining the action taken or proposed to be taken on the recommendations relating to the State and the reasons for the non-acceptance, if any, of any of such recommendations.

(8)

The Commission shall, while investigating any matter referred to in sub-clause (a) or inquiring into any complaint referred to in sub-clause (b) of clause (5), have all the powers of a civil court trying a suit and in particular in respect of the following matters, namely:-

(a)

summoning and enforcing the attendance of any person from any part of India and examining him on oath;

(b)

requiring the discovery and production of any document;

(c)

receiving evidence on affidavits;

(d)

requisitioning any public record or copy thereof from any court or office;

(e)

issuing commissions for the examination of witnesses and documents;

(f)

any other matter which the President may, by rule, determine.

(9)

The Union and every State Government shall consult the Commission on all major policy matters affecting Scheduled Tribes."

[The Constitution (Eighty-ninth Amendment) Act, 2003, created the National Commission for Scheduled Tribes, a constitutional authority that promotes the economic advancement of India's Scheduled Tribes. This act provided for the establishment of a separate body called the National Commission for Scheduled Tribes (NCST) and inserted a new Article 338A under Article 338, giving the NCST constitutional status. The body works for the protection, welfare, and socio-economic development of the tribal communities.

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